

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	20-07-2026 19:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	20-07-2026 19:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Mines
विभाग का नाम / Department Name	Hindustan Copper Limited
संगठन का नाम / Organisation Name	Hindustan Copper Limited
कार्यालय का नाम / Office Name	Kolkata Corporate Office
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id : panduranga_lm@hindustancopper.com Buyer Email id: buycon30.hcl.jh@gembuyer.in
कुल मात्रा / Total Quantity	60
वस्तु श्रेणी / Item Category	Street Light Pole with Pole Round Pole, Dia: 3" Height: 6 mtrs with Lighting Accessories. Detail as , Grouting of High mast/ lighting poles, fixing of other lighting accessories. Detail scope as per ann
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Grouting of High mast/ lighting poles, fixing of other lighting accessories. Detail scope as per annexure
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Category not available on GeM for the text string uploaded by the buyer
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	- High Mast Lighting Tower for large area with LED Flood Lighting System - High Mast Lighting Octagonal Tower for Small area with LED Flood Lighting System (V2)
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेन् है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	Street Light Pole with Pole Round Pole, Dia: 3" Height: 6 mtrs with Lighting Accessories. Detail as
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	3 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	26

(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

A.G.M.(Finance)

Hindustan Copper Limited/Indian Copper Complex, Post - Moubhandar, Dist. -East Singhbhum, Jharkhand -832103 (Hindustan Copper Limited)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% तक की सीमा में है / Purchase Preference to MII sellers available upto price within L1+X%	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% / Purchase Preference to MSE OEMs/ Service Provider available upto price within L1+X%	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to

avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
5. Preference to Make In India products (For bids < 200 Crore):Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate. The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023 [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

6. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

Street Light Pole With Pole Round Pole, Dia: 3" Height: 6 Mtrs With Lighting Accessories. Detail As (30 pieces)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Manjeet Singh	832103,Post- Moubhandar, Sub-division - Ghatsila, Dist- East-Singhbhum, Jharkhand- 832103	30	90

Grouting Of High Mast/ Lighting Poles, Fixing Of Other Lighting Accessories. Detail Scope As Per Ann (30 pieces)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Manjeet Singh	832103,Post- Moubhandar, Sub-division - Ghatsila, Dist- East-Singhbhum, Jharkhand- 832103	30	90

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions**1. Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at

the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. **Generic**

Actual delivery (and Installation & Commissioning (if covered in scope of supply)) is to be done at following address

Stores-in-charge, Mines Store, Mosaboni Concentrator Plant
Hindustan Copper Limited/Indian Copper Complex
Post - Mosaboni
Dist. -East Singhbhum
Jharkhand-832104
.

3. **Generic**

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

4. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

5. **Generic**

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

6. **Generic**

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- a. Copy of PAN Card.
- b. Copy of GSTIN.
- c. Copy of Cancelled Cheque.
- d. Copy of EFT Mandate duly certified by Bank.

7. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

Sub: Procurement of Street Light Pole Grouting and Erection Work for Mosaboni Plant through GeM Portal.

Dear Sirs,

ON LINE Tenders are invited through above portal from in Two Part Bid system for supply of following materials at our Indian Copper Complex Unit, Post – Moubhandar, Sub-Division-Ghatsila , Dist. East Singhbhum, Jharkhand 832103 :-

Sr. No.	Material Code	Material Description	Unit	Qty.
1	091700304	Street Light Pole with Pole Round Pole, Dia: 3" Height : 6 mtrs with Lighting Accessories. Detail as per annexure.	NUMBER	30
2	905520864	Grouting of High mast/ lighting poles, fixing of other lighting accessories. Detail scope as per annexure	NUMBER	30

Annexure

1. Scope of Work

Supply, transportation, delivery, installation, testing, and commissioning of street light poles along with LED street light fittings, including foundation preparation, erection, grouting and all associated works at Mosabani Concentrator Plant, Jharkhand.

2. Technical Specifications

- Street Light Poles- 30 Nos.
- Material: MS Round Pipe
- Diameter: 3 inch
- Height: 6 meters
- Finish: Hot-dip galvanized (preferred)
- Complete with base plate, foundation bolts, and necessary mounting hardware

B. 100W LED Street Light Fittings- 30 Nos.

- Input Voltage: 140-270V AC, 50 Hz
- Luminous Efficacy: ≥ 110 lm/W
- Power Factor: ≥ 0.95
- Protection: IP65/IP66
- Housing: Die-cast aluminium with toughened glass
- Driver: BIS approved with surge protection
- Mounting: Suitable for pole mounting with bracket/arm

3. Detailed Scope of Work

1. Preparing foundation for individual street light poles at different locations inside the plant. Minimum dimension of PCC foundation: Base – 700 mm, Height – 700 mm, Pillar width – 300 mm, with 200 mm above ground level – **30 Nos.**
2. Fixing of base plate and foundation bolts in RCC foundation for street light poles – **30 Nos.**
3. Erection and fixing of street light poles (3" dia, 6 m height) in respective foundations including proper alignment – **30 Nos.**
4. Supplying and fixing of 100W LED street light fittings complete with mounting accessories on pole arms – **30 Nos.**
5. Providing and fixing of necessary pole arm/bracket for mounting of street light fittings – **30 Nos.**
6. Supply and installation of all required accessories such as connectors, glan

ds, lugs, junction boxes, and earthing arrangements for complete commissioning of the street lighting system.

7. Testing, commissioning, and ensuring proper functioning of the complete street lighting system after installation.

4. Commercial Terms

- **Delivery Location:**

Mosabani Concentrator Plant, Jharkhand – 832104

- **Payment Terms**

The payment shall be released in different stages as per details given below:

80% of total value of Supply Materials for Line items, Item Code- 091700304 shall be released after supply of materials at the site. And balance 20% shall be released after successful commissioning of Street Light poles and accessories at site.

100% of total value for Item code- 905520864 shall be released after successful installation of complete street lighting system.

- **Warranty:**

Minimum 2 years from date of supply

- Supplier shall provide **unconditional repair/replacement of defective lights** during the warranty period

- **Performance Bank Guarantee (PBG): 5% of total order value.**

2 years from date of supply/work completion

- **Delivery period**

90 days from the date of placement of order

Important Note to bidders:

- (1) Only Payment term 30 days credit after receipt & acceptance of material will be accepted.
- (2) Delivery Period: Immediately but within 90 days from the date of receipt of PO.
- (3) Inspection of materials at our stores will be final.
- (4) Offer must be submitted FOR destination, delivery of materials at our Mine Store, Mosabani basis. Supplier shall arrange transporter and deliver materials as freight paid basis.
- (5) Price submission by the bidders in the techno-commercial Part-I bid or in their letter head shall be summarily rejected.
- (6) L-1 bidder shall be decided on overall L-1 basis.

Terms & Conditions

1. **TERMS OF PAYMENT:** Payment within Interest Free 30 days Credit after receipt and acceptance of the material at our Stores. "No other payment terms except 30 days credit payment term is acceptable. Offers received other than credit payment term of NIT is liable for rejection".

The company shall release the payment due to the supplier electronically. The e-payment facility is available under INTERNATE mode through SBI. The supplier shall submit duly filled Bank Mandate form in duplicate with due authentication from their banker along with a copy of cheque to avail e-payment /RTGS facility.

2. **GST COMPLIANCE BY CONTRACTOR / SUPPLIER:** "GST will be paid extra by HCL to be claimed in the bills so that HCL can avail Input Credit Tax for the same. No subsequent claim on this account will be entertained by HCL. The GST shall be deposited with the Government by the contractor/supplier in accordance with the statutory provisions of the GST Law. Further, the contractor/supplier agrees that he shall maintain high GST compliance rating track record at any given point of time and consents to the following:
 - a) The details of outward supplies made by the contractor/supplier to HCL will be uploaded in Form GSTR-1 by 11th of the month following the month/quarter for which the return is to be filed.
 - b) Once contractor/supplier has uploaded the details of outward supplies in Form GSTR- 1, contractor/supplier agrees to file the return in Form GSTR-3B by 20th of the month succeeding the month/quarter for which return is to be filed without any delay.
 - c) Wherever contractor/supplier is required to issue e-invoice containing all the particulars as specified in Form GST INV-01 in terms of Rule 48(4) of the CGST Rules, it is agreed that contractor/supplier will comply with such e-invoicing requirements.
 - d) In case the Input Tax Credit of GST is denied or demand is recovered from HCL on account of any non-compliance by contractor/supplier, including non-compliance with e-invoicing provisions, delay or non-filing of Form GSTR-1 and Form GSTR- 3B, non-payment of GST charged and recovered, contractor/supplier shall indemnify HCL in respect of all claims of tax, penalty and/or interest, input tax credit, loss, damages, costs, expenses and liability that may arise due to such non-compliance
 - e) Notwithstanding any other clause of the tender document the payment to the contractor /supplier shall be made only upon invoices being reflected in FOMR GSTR-2A/2B of the relevant month."
3. **DEBARRED FOR PARTICIPATION IN TENDER:** If the supplier withdraws or modifying their offers during the bid validity period or after placement of purchase order or do not execute the Purchase Order within the delivery period of backs out, such supplier shall be debarred from participation in future tender of HCL/ICC for next six (6) months. HCL/ICC procures the materials at the supplier's risk & cost.
4. **DELIVERY OF MATERIAL:** At Mines Store, Mosaboni Mines, by their own arrangement of transportation, within 90 days from the date of receipt of PO.
5. **MATERIAL DELIVERY ADDRESS:** Store-in-Charge, Mosaboni, Hindustan Copper Limited, Indian Copper Complex, PO: Mosaboni, Dist. East Singhbhum, Jharkhand.
6. **FIRM PRICE:** The quoted price shall remain firm till completion of order with our satisfaction.
7. **GST:** GST and other statutory levies shall be included in price
8. **TDS:** Tax under Income Tax Act and Goods and Service Tax Act shall be applicable at the t

ime of payment.

9. **THE COMPANY RESERVES THE RIGHT:** to reject the tenders without assigning any reason whatsoever. The company also reserves the right to cancel the enquiry or extend the due date without assigning any reason whatsoever. The company also does not take any responsibility for party's delay for submission of online offer. Offers received by post, courier, fax, open mail shall not be considered.
10. **OPTION CLAUSE:** The company reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The company also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.
11. **PRICE REDUCTION:** Compensation of loss on account of late delivery/performance shortfall (actually incurred as well as notional) where loss is pre-estimated and mutually agreed to is termed as Price Reduction. The procuring Entity is allowed to recover loss from the supplier/ contractor.
Quantum of Price Reduction: The Procuring Entity may recover from the contractor, as agreed, the Price Reduction a sum equivalent to 0.5 (half) per cent of the prices of any portion of stores and/or service delivered late, for each week or part thereof of delay. The total damages shall not exceed 10 (ten) per cent of the value of delayed goods/service or both. The Price Reduction cannot exceed the above amount of 10% stipulated in the original awarded contract value including GST. Financial loss due to delayed delivery/service or both should be calculated for claim of Price Reduction.
12. **RISK & COST:** The supply of all the ordered material must be completed within the specific period and to the entire satisfaction of the HCL/ICC, the purchaser failing which the purchaser reserves the right to purchase the material from other agency/ source at the suppliers' cost and risk in addition to the price reduction stipulated in clause 11.
13. **CLARIFICATION OF SEEKING SHORTFALL DOCUMENTS FROM BIDDERS :** The company reserves its right to seek any shortfall information/documents only in case of historical documents that pre-existed on the last date of bid submission, and which have not undergone change since then. It is clarified that any historical/pre-existed documents as on or before the last date of bid submission can be treated as shortfall documents for meeting the pre-qualification criteria and other terms & conditions of the ATC. Historical documents are those pre-existed documents available with the bidder as on the last date of bid submission, irrespective of the documents uploaded/submitted by the bidder in the bid submitted.
14. **Performance Bank Guarantee):** Applicable
The successful bidder, hereinafter called the Supplier shall be required to deposit 5 % of the Total Purchase Order value (Inclusive of all, on overall value including GST) for the performance bank guarantee either in insurance surety bond(Annexure-II) or RTGS/NEFT preferably or in the shape of Bank Guarantee in HCL's format (Annexure-I) from a Scheduled Commercial Bank (except Co-Operative and Gramin Bank) as Security Deposit within 30 (Thirty) days of issue of LOI / Work Order, whichever is earlier, The PBG should be valid for a period of 26 Months from the date of placement of contract or LOI whichever is earlier. **A penal interest @18% per annum may also be collected from the bidders on a pro-rata basis on account of any delay towards submission of SD amount after the assigned period of 30 days. The supplier would be required to extend the validity of bank guarantee time to time to as per provision of the Purchase Order.**
 - a. Payment to the supplier shall be kept withheld till receipt of BG. The payment to the supplier as per terms of the Purchase order shall be affected only after the required BG has been submitted by the supplier.
 - b. The Security Deposit / Bank Guarantee shall bear no interest and refund will be as per

er provision of the Purchase order.

c. The method of submission of Bank Guarantee is as below:

i. The bank guarantees issued by the issuing bank on behalf of the successful bidder in favour of Hindustan Copper Limited (HCL) shall be in hard copy in original on stamp paper as well as Structured Financial Messaging System (SFMS).

ii. HCL has chosen State Bank of India to act advising/beneficiary bank of HCL. The bank issuing the guarantee should choose this bank to send confirmation through SFMS.

iii. The details of beneficiary (i.e. HCL) for issue of bank guarantee through SFMS platform is as furnished below:

Our Bank Details is as follows:	
State Bank of India. Branch- Moubhandar. Dist. East Singhbhum, Jharkhand- 832103.	IFSC CODE- SBIN0001484 Branch Code- 001484 A/C. No. 00000011524102778
Our GST No : 20AAACH7409R1ZF	

iv. The Supplier are required to take note of it that above particulars are to be incorporated by the issuing bank properly while issuing the Bank Guarantee under SFMS mode to avoid any future problem in accepting the PBGs.

v. The Guarantor (BG issuing bank) shall send information about issuance of this Guarantee through SFMS gateway to the State Bank of India Branch- Moubhandar (IFSC - SBIN0001484), to aid in the process of confirmation of Performance Bank Guarantee.

vi. The BG shall also have a clause that "The BG shall be operable including encashment at issuing bank's any local branch in Ghatsila /Jamshedpur"

vii. The Original Bank Guarantee issued by the outstation bank shall be sent by the Issuing Bank to the Hindustan Copper Limited, Indian Copper Complex at Ghatsila by Speed Post /Registered Post (AD).

d. The Company shall be at liberty to deduct and appropriate from the BG such penalties and dues as may be payable by the Supplier under the contract and the amount by which the Bank Guarantee shall get diminished will be made good by further deduction from the Suppliers subsequent bills in the same manner as aforesaid until the BG is restored to its full limit mentioned above.

e. The Company shall have the full right to forfeit and appropriate the BG on breach of any of the terms and conditions laid down herein or will be applicable in future, without prejudice to the rights of the Company or otherwise available under the law.

f. On breach of a contract by a supplier, Bank Guarantee shall be forfeited/ encashed, whether or not the company has suffered a loss on this account and Purchase Order will be rescinded. Forfeiture/encashment of Bank Guarantee does not prejudice HCL's rights to make risk purchase and recover damages on account of such risk purchases.

g. In case of termination of the order by the supplier, the Company shall have the right to forfeit the Security Deposit / Bank Guarantee.

h. On due and satisfactory performance and completion of the order in all respect and settlement of final bills, the BG will be returned to the Supplier without any interest on presentation of an absolute No Demand Certificate in the form as may be prescribed by the Company.

i. In case of repeat order placed on the successful tenderer, subject to their satisfactory performance, the validity of BG provided for the original order shall be extended suitably by the successful tenderer to cover the additional quantity awarded in the repeat order. The same shall also be applicable in case Option Clause is invoked.

j. The Bank Guarantee should remain valid for a period of 60 (sixty) days beyond the date of completion of all contractual obligations of the supplier, including warranty obligations.

k. The Bank Guarantee will be forfeited and credited to HCL's account in the event of a breach of contract by the Supplier. The PBG shall be forfeited in case the successful bidder fails to honor contractual obligations. PBG shall be refunded to the Supplier without interest, after successful performance and completion of the order in all respects but not later than 60 (sixty) days of completion of all obligations including the warranty under the order, subject to recovery of claim if any.

- I. The provision of Bank Guarantee Clause shall not apply to the following:
- § Public Sector Undertakings
 - § Government departments/Government Institutions
 - § OEMs

15. **FORCE MAJEURE CLAUSE:** If at any time during the continuance of this contract, the performance in whole or in part by either party of any obligation under this contract shall be prevented or delayed by reason of war, act of hostility of public enemy, civil disruption or sabotage, fires, floods, explosions, epidemics, quarantine restrictions or acts of God (hereinafter referred to as events), provided notice of the happening of any such eventuality is given by the either party to the other within 21 days from the date of occurrence thereof, neither party shall by reasons of such event be entitled to terminate this contract nor shall either party have any claim for damages against the other in respect of such non-performance or delay in performance / execution under the contract.

Provided also that such performance / execution under the contract should commence as soon as practicable, after such event has come to an end or ceased to exist and the decision of HCL as to whether the performance in whole or in part or any execution under this contract is prevented or delayed by reasons of any such event for a period exceeding 60 days, either party may opt to terminate the contract. If the contract is terminated under this clause, HCL shall have the liberty to take over from the contractor at a reasonable price, all unused, undamaged and acceptable materials, machinery, equipments, etc. at the site, being used for the performance of the contract and in the possession of the contractor at the time of such termination of such portion thereof as HCL may deem it fit, except such materials, equipments, etc. that the contractor may with the concurrence of HCL elect to retain. It is also understood in addition that this Force Majeure clause will cover parties' inability to perform on account of change in law or imposition of rules or restrictions by the Government.

16. **IDEMNIFICATION:** The supplier will indemnify HCL/ICC for against any liability in respect of any charges payable under any acts of Parliament or State Govt. Rules/ Orders or any regulations/ Bye Laws made there-under any local authority in respect of the contract within a week.
17. **EXCLUSION OF LIABILITY FOR PAYMENT OF INTEREST:** The Company shall not be liable for payment of any interest on the amount that may become payable to the contractor under this contract and matters connected therewith. Only the competent authority of the company can do any waiver of any clause of this contract.
18. **REJECTION AND REMOVAL OF REJECTED GOODS:** If Testing and Inspection reveals that the goods do not comply with the specifications, they shall be rejected. The rejected goods will have to be lifted by the supplier at their own cost within a month of receipt of rejection advice from HCL.
19. **REPLACEMENT OF REJECTED GOODS:** You will replace rejected goods within 15 days from the date of our intimation. In case, it is not done, ground rent as per HCL standard norm shall be charged.
20. **CANCELLATION/TERMINATION:** Hindustan Copper Limited reserves the right to cancel/terminate in full or part of the ordered quantity during the currency of the order without assi

- gning any reasons.
21. Any order resulting from this enquiry shall be governed by the terms and conditions in addition to those mentioned in order. Where counter terms and conditions have been offered by the supplier, the purchaser shall not be governed by them unless specific acceptance has been given in writing in the order by the purchaser.
22. **EVENTS OF DEFAULT:**
The following events shall be termed as Events of Default:
Does not execute the contract in conformity with the provisions of the contract, or
- a) Substantially suspends any part of its execution for a period of fourteen (14) days without authority from HCL, or
 - b) Fails to carry on and execute the contract to the satisfaction of HCL, or
 - c) Commits or permits any breach of any of the provisions of the contract (on the part of the insurer to be performed or observed), or persists in any of the above mentioned breach of the contract for fourteen (14) days, after notice in writing is being / shall be given to the contractor by HCL requiring such breach to be remedied, or
 - d) Abandons the work(s), or
 - e) During the continuance of the contract, becomes bankrupt, makes any arrangement or composition with its creditors, or permits any execution to be levied or goes into liquidation other than for the purpose of amalgamation or reconstruction, or
 - f) Does not perform as per the agreed programme submitted by the contractor.
23. **TERMINATION DUE TO EVENTS OF DEFAULT:**
- a) If HCL decides to terminate this contract, it shall in the first instance issue Preliminary Notice to the contractor. Within 15 days of receipt of the Preliminary Notice, the contractor shall submit to HCL in sufficient detail, the manner in which it proposes to cure the underlying Event of Default (the "Contractor's Proposal to Rectify"). In case of non submission of the Contractor's Proposal to Rectify within the said period of fifteen (15) days, HCL shall be entitled to terminate this contract by issuing Termination Notice, and to appropriate any Security, if subsisting.
 - b) In the Contractor's Proposal to Rectify is submitted within the period stipulated thereof, the contractor shall have to its disposal a further period of fifteen (15) days to remedy/cure the underlying Event of Default. If, however, it fails to remedy/cure the underlying Event of Default within the stated period, HCL shall be entitled to terminate this contract and to appropriate the Security, if subsisting.
24. **FORECLOSURE OF ORDER IN FULL OR IN PART:**
If at any time after placement of Purchase Order, HCL reserve the right to foreclose or reduce the scope of the purchase order and hence not require the whole or any part of the purchase order during the contract period (need by date) without assigning any reason. In the event, any such action taken by HCL, the Supplier shall be paid full amount for the up to date quantum of supply executed and billed by the supplier under the relevant item (s) supply of purchase order terms & conditions.
25. **RECOVERY OF SUM DUE:** Whenever any claim arises against the contractor for payment of any sum of money out of or under the order, HCL shall be entitled to recover such sums any time from the contractor under this or any other order of the contractor with HCL. In case the amount of existing bill is not sufficient for recovery of pending dues, the contractor

r shall pay to HCL the balance remaining dues immediately.

26. **AMICABLE RESOLUTION:**

- a) Save where expressly stated to the contrary in this contract, any dispute, difference or controversy of whatever nature between the Parties, howsoever arising under, out of or in relation to this contract including disputes, if any, with regard to any acts, decision or opinion of the Officer-in-Charge and so notified in writing by either Party to the other (the "Dispute") shall in the first instance be attempted to be resolved amicably in accordance with the procedure set forth in part (b) below.
- b) Either Party may require such Dispute to be referred to the work in charge of HCL and the contractor for amicable settlement. Upon such reference, the two shall meet at the earliest as per their mutual convenience and in any event within fifteen (15) days of such reference to discuss and attempt to amicably resolve the Dispute. If the Dispute is not amicably settled within fifteen (15) days of such meeting, either Party may refer the Dispute in accordance with the provisions of part (c) below.
- c) In the event that any Dispute has not been resolved as per the provisions of (b) above, the same shall be referred to the Director or a person of equivalent designation, of HCL and the contractor for amicable settlement. Upon such reference, the two shall meet at the earliest as per their mutual convenience and in any event within fifteen (15) days of such reference to discuss and attempt to amicably resolve the Dispute. If the Dispute is not amicably settled within fifteen (15) days of such meeting between the two, either Party may refer the Dispute to arbitration in accordance with the provisions of Arbitration clause.

27. **ADMINISTRATIVE MECHANISM FOR RESOLUTION OF CPSES DISPUTES (AMRCD):**

In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial Contract(s) between Central Public Sector Enterprises (CPSEs)/Port Authorities inter se and also between CPSEs and Government Departments/Organizations (excluding disputes concerning Railways, Income-Tax, Customs & Excise), such dispute or difference shall be resolved through the Administrative Mechanism for Resolution of CPSEs Disputes (AMRCD) in accordance with DPE OM No. DPE02/0001/2023-AMRCD-FTS-13578 dated 08.12.2025, as amended from time to time. The decision of the AMRCD shall be final and binding on the Parties.

28. **ARBITRATION:**

Any dispute(s) of difference(s) not more than one crore of any kind whatsoever arising between the parties out of, or relating to the construction, meaning, scope, operation or effect of the contract or its validity or its breach thereof, if not settled mutually, shall be referred by the parties to this contract for Arbitration under the Arbitration and conciliation Act, 1996 and any amendments thereof, and the provisions there under, and the award made in pursuance thereof shall be binding on the parties.

The Arbitrator will be appointed within 30 days of reference to the arbitration. A sole Arbitrator will be appointed by the mutual consent of the parties to the contract, who according to Arbitration and conciliation Act, 1996 and any amendments thereof, will

I not stand in conflict of interest with any of the organizations. A declaration to the effect shall be submitted by the Arbitrator, to guarantee impartiality in the proceedings.

- In the event of such an arbitrator to whom the matter is originally referred, being transferred or has vacated his office because of retirement, or resignation or otherwise or refuses to act or is incapable of acting for any reason whatsoever, the appointment of arbitrator in his place will be done by mutual consent of the Parties to the Contract, who again would not stand in any conflict of interest with both the parties such person(s) shall be entitled to proceed from the stage at which his predecessor left it.
- The duration of proceedings and the fee structure will be governed by the 1996 Act, and any amendments thereof. The venue of the arbitration shall be HCL/ICC. The award of the arbitrator shall be final and binding on the parties. Any dispute, which arises at any point of time out of arbitration, shall have the jurisdiction of the court of Ghatsila/Jamshedpur.
- Subject to the above, the provision of Arbitration and conciliation Act, 1996 and the rules there under and the statutory modifications thereof shall govern such arbitration proceedings and shall be deemed to apply and be incorporated in this contract.

Disputes which are not covered under para 5 (AMRCD) & 6 (Arbitration) above shall be referred to the Commercial Courts as per The Commercial Courts Act, 2015.

29. **JURISDICTION OF COURT:** All disputes pertaining to this contract shall be subject to the jurisdiction of GHATSILA/JAMSHEDPUR COURT only.
30. **LIEN:**
The Company shall have a lien on all amounts that may become due and payable to the Contractor under this or any another contract/transaction of any nature whatsoever between the Company and Contractor including the Earnest Money and receipt of any debit or sum that may become due and payable to the Company or to any one by the Contractor with either along or jointly or transaction or any contract whatsoever between the Company and the Contractor and the Company shall be entitled to deduct the said debit or sum due and payable to the Company (of which the Company shall be the sole judge) or to any one by the Contractor from the amounts aforesaid and the Earnest Money and the Security Deposit without prejudice to the rights and remedies available in the Company.
31. **DEMURRAGE/DETENTION CHARGES:** Demurrage/detention charges or any other claims paid by the company for reasons attributed to the contractor shall be recoverable from the contractor's account. The decision of the Engineer-in-Charge in this regards shall be final and legally binding on the contractor.
32. **NO ASSIGNMENT:** The Purchase Order when placed shall not be assigned to any other agency by the supplier.
33. **MSME**
- 1) Micro and Small Enterprises [MSEs] shall be eligible for availing all the benefits as laid down under the Public Procurement Policy for MSEs [Order 2012]
 - 2) The condition of prior turnover and prior experience shall be relaxed for Start-up Medium Enterprises [whether MSEs or otherwise] subject to meeting of quality and technical specifications of the tender.
 - 3) The parties participating in the bidding shall have to provide documentary evidence

e of being registered as MSMEs to avail benefits available in this segment.

- 4) Declaration of UAM number by MSE bidders on CPP portal is mandatory, failing which such bidders will not be able to enjoy the benefits as per the Public Procurement Policy for MSE Order, 2012.

34. **POLICY FOR MSEs UNDER PUBLIC PROCUREMENT BILL 2012:**

Those MSEs which are registered with Districts Industries Centers (DICs) / Khadi & Village Industries Commissions (KVIC)/ Khadi& Village Industries Board (KVIB) / Coir Board/ NSIC/Directorate of Handicrafts and Handloom or any other body specified by Ministry of Micro, Small & Medium enterprises are eligible for availing benefits under the Public Procurement Policy.

In tender, participating MSEs quoting price within band of L1+15% shall also be allowed to supply a portion of requirement by bringing down their price to L1 price in a situation where L1 price is from someone other than an MSE. Such MSEs shall be allowed to supply up to 25% of total tendered value. In case of more than one such MSE, the supply will be shared proportionately.

Policy is meant for procurement of only goods produced and services rendered by MSEs.

Out of 25% target of annual procurement from MSEs, a sub target of 4% (Four per cent) is earmarked for procurement from MSEs owned by Scheduled Caste (SC)/ Scheduled Tribe (ST) Entrepreneurs. However, in the event of failure of such MSEs to participate in tender process or meet tender requirements and L1 Price, 4% sub-target for procurement earmarked for MSEs owned by SC/ST Entrepreneurs will be met from other MSEs. MSEs participating against the tender should submit necessary documentary evidence for availing the facility of the policy.

The MSEs owned by SC/ST has to submit cast certificate issued by competent authority along with the offer. MSEs owned by SC/ST has to submit caste certificate issued by competent authority along with the offer.

MSEs would be treated as owned by SC/ST entrepreneurs:

- i) In case of proprietary MSE, proprietor(s) shall be SC/ST
- ii) In case of partnership MSE, the SC/ST partners shall be holding at least 51% (Fifty One per cent) shares in the unit
- iii) In case of Private Limited Companies, at least 51% (Fifty One per cent) share shall be held by SC/ST promoters.

35. **CONDITIONS FOR START-UP COMPANIES & STATUP CERTIFICATION FROM DIPP:**

Subject to meeting of Quality and Technical specifications, HCL may consider allowing the participation of "Start up" companies with capability to execute the supply/ services, as per technical specifications/ perform the job as per scope of work specified in the tender and subject to meeting extant & relevant guidelines of Government of India. The bidder who intends to participate as "Start-up" company should enclose the Certificate of Recognition issued by Department of Industrial Policy and Promotion, Ministry of Commerce & Industry, Govt. of India during submission of Technical bid.

36. **PUBLIC PROCUREMENT (PREFERENCE TO MAKE IN INDIA) ORDER-2017:** is applicab

le for the tender and takes into account Government of India notification No. P-45021/2/2017-PP (BE-II) dated 15.06.2017 (subsequently revised vide Orders dated 28.05.2018, 29.05.2019, 04.06.2020 & 16.09.2020) for procurement of any goods or services from any category of bidders, or provide preference to bidders on the grounds of promotion of locally manufactured goods or locally provided services. All the provisions of the latest revision of the Order P-45021/2/2017-PP (BE-II) dated 16.09.2020 is applicable for this procurement case.

Class-I and Class-II local supplier of enquired items are eligible to participate in the bid as defined in Public procurement (Preference to make in India) order 2017 dated 04.06.2020 & subsequent revisions thereof. However, the new bidders, if qualified, shall be put to trials as detailed in the tender documents. Bids are to be submitted/ uploaded in complete accordance with enclosed Tender Documents.

Class-I and Class -II Local suppliers as defined in PPP-MII order 2017 and revision thereof are eligible to participate in the bid. The minimum local content must be 50% for Class-I local supplier and must be minimum 20% and less than 50% for class-II supplier at present. Accordingly, all the bidders are required to submit required Certificate indicating that the bidder is Class-I or Class -II local supplier with minimum percentage of local content in their product as per Public procurement (Preference to Make in India) order 2017 dated 04.06.2020 & subsequent revisions thereof. The certificate is to be issued by the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content.

Allocation of tendered qty.:- The guidelines for distribution of order quantity shall be as per clause 3B of the Public Procurement (Preference to Make in India), Order 2017- Revision regarding dated 16.09.2020 & subsequent revisions thereof.

37. **RESTRICTIONS UNDER RULE 144(xi) OF THE GENERAL FINANCIAL RULES (GFRs) 2017:**

Any bidder from a country which shares a land border with India will be eligible to bid in any procurement whether of Goods, Service including (consultancy services & non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the competent authority.

Vide office memorandum ref. No.F.12/1/2021-PPD (Pt.), dated 2nd March 2021, relaxation is provided for the procurement of spares parts and other essential service support like Annual Maintenance Contract (AMC) /Comprehensive Maintenance Contract (CMC), including consumables for closed systems, from Original Equipment Manufacturers (OEMs) of their authorized agents, shall be exempted from the requirement of registration as mandated under Rule 144 (xi) of GFRs 2017.

38. All the clauses of Order No. F.No. 6/18/2019-PPD dated 23.07.2020 issued by Ministry of finance (dept of Expenditure) shall be applicable against the tender. The same is available at website <https://doe.gov.in/procurement-policy-divisions>).

All the bidders are required to submit compliance certificate as asked in the above order No. F.No. 6/18/2019-PPD dated 23.07.2020. The model certificate is given below:

Model certificate for tenders:

"We have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India. We certify that bidder M/s. _____ (name of the bidder) is not from such a country or if from such a country, has been registered with the C

ompetent Authority. We hereby certify that bidder M/s. _____ (Name of bidder) fulfills all the requirement in this regard and is eligible to be considered against the tender.” If the above certificate given by a bidder, whose bid is accepted, is found to be false, this would be a ground for immediate rejection of bid/termination of contract and further legal action in accordance with law.

39. **DECLARATION OF RELATIONSHIP WITH HCL EMPLOYEE:**

It is compulsory for a bidder to declare whether the proprietor/ partner/ Director of the firm has any relation with any employee working in the Units concerned or Director of HCL and if so, give the details and the relationship.

40. Any order resulting from this enquiry shall be governed by the terms and conditions in addition to those mentioned in order. **Where counter terms and conditions have been offered by the supplier, the purchaser shall not be governed by them unless specific acceptance has been given in writing in the order by the purchaser.**

41. **Acceptance of all the terms and conditions as per ATC should be confirmed.**

Annexure -I

Guarantee)

(Performance Bank

PROFORMA OF BANK GUARANTEE FOR PERFORMANCE BANK GUARANTEE

(On non- judicial stamp paper of appropriate Value)

To Hindustan Copper Limited Indian Copper Complex, P O - Ghatsila -832 303 Dist East Singhbhum, Jharkhand.

Dear sir,

M/s.

_____ upon being awarded the work of _____ for Hindustan Copper Limited at

_____ under tender/ LOI/ Work Order No. _____
_____ approached us with the request to furnish Hindustan Copper Limited at _____ a Bank Guarantee for Rs. _____ only (Rupees

_____ only) towards Se

curity Deposit. At their

request and in consideration of the promises we _____ have agreed to give
guarantee as hereinafter mentioned.

1.

We

_____ hereby agree and undertake that if in your opinion any default is made by the said M/s.

_____ in performing any of the terms and/ or conditions of the agreement or if in your opinion he commits any breach of agreement or there is any demand by you against the said M/s.

_____ then on notice to us by you we shall on demand without demur and without reference to the said M/s.

_____ immediately pay to you, in any manner in which you may direct, the said amount of Rs.(Rupees _____

_____ only) or such portion thereof as may be demanded by you not exceeding the said sum and as you may from time to time require, Our liability to pay is not dependent or conditional on your proceeding against the said M/s.

_____ and we shall be liable to pay the aforesaid amount as and when demanded by you merely on a claim being raised by you

and even before any legal proceedings are taken against the said M/s. _____

_____.

2. You will have full liberty without reference to us and without affecting this guarantee, postpone for any time or from time to time the exercise of any of the powers and rights conferred on you under the contract with the said M/s.

_____ and to enforce or to forbear from endorsing any power or rights or by reason of time being given to the said M/s.

_____ which under law relating to sureties would but for the provision have the effect of releasing us.

3. Your right to recover the said sum of Rs.

_____ only (Rupees _____ only) from us in manner aforesaid will not be affected or suspended by reason of the fact that any dispute or disputes have been raised by the said M/s. _____

_____ and /or that any dispute or disputes are pending before any officer, tribunal or court.

4. Our guarantee herein contained shall not be determined or affected by the

liquidation or winding up of dissolution or change or constitution or in solvency of the said M/s. _____

_____ but shall in all respects and for all purposes be binding and operative until payment of all money due to you in respect of such liability or liabilities.

5. Our liability under this guarantee is restricted to Rs.

Only (Rupees _____

_____ only). Our guarantee shall be valid up to _____ and we are liable to pay the guaranteed amount or any part thereof under the Bank Guarantee only and only if you serve upon us a claim or demand or a suit/ action to enforce a claim under guarantee is filed against us on or before _____.

6. We have power to issue this guarantee in your favour under memoran

dum and Articles of Association and the undersigned has full power to do under the power of attorney dated

_____ granted to him by the Bank.

7. "The PBG shall be operable including encashment at issuing bank's any local branch in Ghatsila /Jamshedpur" at branch / branch code no. _.

Yours faithfully,

Bank.

(Signature of person duly authorised to sign on behalf of the Bank)

Annexure - II

**PROFORMA OF INSURANCE SURETY BOND
IN LIEU OF SECURITY DEPOSIT/ INITIAL SECURITY DEPOSIT/
ADDITIONAL INSURANCE SURETY BOND**

SURETY BOND NO: _____

DATED: _____

VALID UPTO

: _____

TO,
HINDUSTAN COPPER LIMITED

Dear Sirs,

In consideration of HINDUSTAN COPPER LIMITED _____

_____ (hereinafter called "the COMPANY" which expression shall include its successors and assigns), having awarded certain work for and relative to _____

_____ (Name of the Project/Work) to _____

_____ (Name and address of the Contractor) (hereinafter called "the Contractor" which expression shall include its successors and assigns), upon certain terms and conditions inter-alia mentioned in the COMPANY's Letter of Intent/Letter of Acceptance/Work Order No. _____

_____ dated _____ read with the relative Tender Documents (hereinafter collectively called "the Contract", which expression shall include any formal contract entered into between the COMPANY and the Contractor in supersession of the said Letter of Acceptance/Work Order No., etc., and all amendments and/ or modifications in the contract) inclusive of the condition that t

he COMPANY may accept a Insurance Surety Bond of a SURETY INSURER in India in lieu of Cash Deposit of the Initial Security Deposit as provided for the said Tender Documents:

We _____ (Name of the Surety Insurer), a body registered/constituted under the Act, having our Registered Office/Head Office at (hereinafter called "the Surety Insurer" which expression shall include its successors and assigns), at the request of the Contractor and with the intent to bind the Surety Insurer and its successors and assigns, do hereby unconditionally and irrevocably undertake to pay to the COMPANY forthwith on first demand and without protest or demur or proof or satisfaction and without reference to the contractor up to an aggregate limit of Rs. _____ (Rupees _____ only).

AND the Surety Insurer doth hereby further agrees as follows:

- (i) This Insurance Surety Bond shall be a continuing guarantee and shall remain valid and irrevocable for all claims of the COMPANY upon the Surety Insurer made up to the midnight dated _____ of provided that the Surety Insurer shall upon the written request of the COMPANY made upon the Surety Insurer at any time within 6 (six) months from the said date extend the validity of the Insurance Surety Bond by a further 6 (six) months so as to enable claims to be made under this Insurance Surety Bond by a further 6 (six) months from the said date with the intent that the validity of this Insurance Surety Bond shall automatically stand extended by a further 6 (six) months upon such request by the COMPANY.
- (ii) The COMPANY shall have the fullest liberty without reference to the Surety Insurer and without affecting in any way the liability of the Surety Insurer under the Insurance Surety Bond, at any time and/or from time to time to amend or vary the Contract and/or any of the terms and conditions thereof or relative to the said Initial Security Deposit or to extend time for performance of the said Contract in whole or part or to postpone for any time and/or from time to time any of the obligations of the Contractor and either to enforce or forbear from enforcing any of the terms and conditions of or governing the said Contract or the said Initial Security Deposit of the securities available to the COMPANY or any of them and the Surety Insurer shall not be released from its liability under these presents and the liability of the Surety Insurer hereunder shall remain in full force and effect notwithstanding any exercise by the COMPANY of the liberty with reference to any or all the matters aforesaid or by reason of time being given to the Contractor or any other forbearance, act or omission on the part of the Contractor or of any indulgence by the COMPANY to the Contractors or of any other act, matter or thing whatsoever which under the law relating to sureties or otherwise which could but for the provision have the effect of releasing the Surety Insurer from its liability hereunder or any part thereof and the Surety Insurer hereby specifically waives any and all contrary rights whatsoever.
- (iii) The obligations of the Surety Insurer to the COMPANY hereunder shall be as principal to principal and shall be wholly independent of the contract and it shall not be necessary for the COMPANY to proceed against the Contractor before proceeding against the Surety Insurer and the Insurance Surety Bond herein contained shall be enforceable against the Surety Insurer notwithstanding the existence of any other Insurance Surety Bond or security for any indebtedness of the Contractor to the COMPANY (including relative to the said Security Deposit) and notwithstanding that any such unde

rtaking or security shall at the time when claim is made against the Surety Insurer or proceedings taken against the Surety Insurer hereunder, be outstanding or unrealized.

- (iv) The amount stated by the COMPANY in any demand, claim or notice made with reference to this guarantee shall as between the Surety Insurer and the COMPANY for the purpose of these presents be conclusive of the amount payable by the Surety Insurer to the COMPANY hereunder.
- (v) The liability of the Surety Insurer to the COMPANY under this Insurance Surety Bond shall remain in full force and effect notwithstanding the existence of any difference or dispute between the Contractor and the COMPANY, the Contractor and the Surety Insurer and/or the Surety Insurer and the COMPANY or otherwise howsoever touching or affecting these presents for the liability of the Contractor to the COMPANY, and notwithstanding the existence of any instructions or purported instructions by the Contractor or any other person to the Surety Insurer not to pay or for any cause withhold or defer payment to the COMPANY under these presents, with the intent that notwithstanding the existence of such difference, dispute or instruction, the Surety Insurer shall be and remain liable to make payment to the COMPANY in terms hereof.
- (vi) The Surety Insurer shall not revoke this undertaking during its currency except with the previous consent of the COMPANY in writing and also agrees that any change in the constitution or dissolution or liquidation or winding up of the Contractor or the Surety Insurer or the COMPANY shall not discharge the Surety Insurer's liability hereunder.
- (vii) Without prejudice to any other mode of service, a demand or claim or other communication may be transmitted by fax/email. If transmitted by fax, the transmission shall be complete as soon as acknowledged by Surety Insurer.
- (viii) Notwithstanding anything contained herein:
 - (a) The Surety Insurer's liability under this guarantee/undertaking shall not exceed (Amount in figures & words);
 - (b) This guarantee/ undertaking shall remain in force up to and any extension(s) thereof; and
 - (c) The Surety Insurer shall be released and discharge from all liability under this guarantee/ undertaking unless a written claim or demand is issued to the Surety Insurer on or before _____ or the date of expiry of any extension(s) thereof if this Insurance Surety Bond has been extended.
- (ix) The Surety Insurer doth hereby declare that Shri _____ (Name of the person signing on behalf of the Surety Insurer) who is _____ (his designation), is authorized to sign this undertaking on behalf of the Surety Insurer and to bind the Surety Insurer hereby.

Dated this day of _____ 20_____.

Yours faithfully,
_____,

Signature:
Name & Designation:
Name of Issuing Branch:
Complete Postal Address of Iss

uing

Branch:

urer issuing

Telephone No.:
Fax No.:
Email Address of the Surety Ins

Insurance Surety Bond
Officer/Surety Insurer Branch

8. **Warranty**

Warranty period of the supplied products shall be 2 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

9. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

10. **Forms of EMD and PBG**

Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC). On-line payment shall be in Beneficiary name

Hindustan Copper limited

Account No.

00000011524102778

IFSC Code

SBIN0001484

Bank Name

State Bank of India

Branch address

Branch Moubhandar. Dist. East Singhbhum, Jharkhand-832103.

. Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 15 days of award of contract.

11. **Generic**

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

12. **Certificates**

The bidder is required to upload, along with the bid, all relevant certificates such as BIS licence, type test certificate, approval certificates and other certificates as prescribed in the Product Specification given in the bid document.

13. **Generic**

The successful bidder has to supply all essential accessories required for the successful installation and commissioning of the goods supplied. Besides standard accessories as per normal industry practice, following accessories must be part of supply and cost should be included in bid price:

All cost components including all accessories as mentioned in the ATC and unloading of Material at our site

14. Generic

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- i) The Seller fails to comply with any material term of the Contract.
- ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

15. Generic

While generating invoice in GeM portal, the seller must upload scanned copy of GST invoice and the screenshot of GST portal confirming payment of GST.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.

14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---